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AVOIDING TRAGEDY IN *THE MERCHANT OF VENICE*

“My deeds upon my head!”
(4.1.202)

Perhaps more than any other personage in Shakespeare, Shylock is a character whose predicament forces those who try to say something about that predicament to reveal, to some degree, their own prejudices.

By this, I do not only mean to say that critics reveal their anti-Semitism, their concerns about Shakespeare’s own anti-Semitism or their veiled hostility toward Christians; though all of those things happen, too. Rather, I mean that one’s critical stance toward Shylock depends deeply, perhaps unavoidably, upon what one makes of his fate in the trial scene—and this in turn depends, I will suggest, on the degree to which one not only judges, but also sympathizes or even identifies with Shylock. In this sense, from the outset there is already the prejudicial relationship one has to Shylock, in the extent to which we see in Shylock someone not unlike ourselves, even prior to any judgment of his deeds.

This might mean that we are in, or proximate to, the domain of the tragic—wherein seeing “one like ourselves” act and suffer is crucial to the affective response peculiar to tragedy.¹ As Aristotle pointed out, our capacity to render judgment about a play depends upon our recognition of something of ourselves in the protagonist; such that any judgment of their actions, in turn, reflects upon the one judging. It is true that Shylock is not easily compared to Oedipus or Thyestes (Aristotle’s examples in the operative passage), but—given the difficulty that students of the play typically have in determining from the start whether Shylock is unambiguously ‘good’ or ‘bad’—it might be fair to say that Shylock meets the basic Aristotelian requirement that the protagonist be more or less “like ourselves,” neither a reprobate nor a saint. Thus, in Aristotelian terms at least, it could be said that Shakespeare devises a remarkable drama of judgment that forces the spectator of the play, like the onlookers in the play, to make a judgment, or series of judgments—as if the audience, and not only Shylock, were on trial.

That we, too, are compelled to judge Shylock’s fate is bound up with our dramatic investment in this intense drama—such that we cannot fail to judge if we are at all moved by what we are seeing. In other words, *if* we are moved then

¹ The citation is from Aristotle’s *Poetics* 1453a7.

we cannot escape being put on trial, too, by what we witness. To put the audience on trial, alongside the protagonist, precisely by witnessing the fate of the protagonist, is—as Jean Pierre Vernant writes—what tragedy in its classical, Attic sense was designed to do. The real protagonist of tragedy, he notes in a well-known thesis, is the city, its values, attitudes and modes of thought.²

When Aristotle defined tragedy in the *Poetics*, he not only offered an account of the internal structure of tragic dramas—above all, the notion that plot or *mythos* is the “soul” of tragedy; he moreover linked this account to a normative understanding of their impact on the audience. In this way, the plots of tragedies—their staging of the vicissitudes of human actions—make a partial claim about the nature and conditions of those actions that cannot be separated from the way in which these actions move us; that is, the constitutive feelings of the social bonds that connect us to our fellow audience members (*katharsis*). If the tragic story moves us, in other words, it does so in a way that lays bare our philial bonds—which are strengthened, broken or altered through these fearful and pitiful events, just as the protagonists’ philial bonds (as Aristotle points out) ought not go unchanged by these events.³ At stake is not just the community ‘internal’ to the play—the family or tribal drama itself (whether in Thebes or Venice)—but the community that stages the drama, and finds itself moved by it.

In what follows, I want to say something about the extent to which *Merchant* might be grasped through the category of tragedy or the ‘tragic’—not because I care particularly whether we classify the play in this way or that; I frankly feel that generic classifications and taxonomies meet their limits with the complexity of the Shakespearean *oeuvre* anyway; or, at least, they force us to redefine the meaning of these classifications.⁴ Rather, if tragedy names a mode of representation that succeeds in putting the fate and disposition of both protagonists and audience into crisis, then the term might function as a step-ladder (to be kicked away later) that helps us to reach some conclusions about the way in which the staging of Shylock’s fate says something about us, Shylock’s spectator, as well. Furthermore—considering the extent to which critics of *Merchant* have often defined the play, or Shylock, as something less than tragic, as non-tragic or not fully tragic—this latter aim might help us to grasp something about the play’s critical reception as well, and the avoidance of tragedy that has sometimes attended it.

Before going any further, allow me to briefly outline what I take to be a central problem posed by Shylock’s predicament, in relation to the broader communal setting of that predicament—that is, the problem he poses not just to Antonio or

² Jean-Pierre Vernant and Pierre Vidal-Naquet *Myth and Tragedy*, trans. Janet Lloyd (New York: Zone Books, 1990), 35 and passim.

³ Aristotle, *Poetics* 1453b

⁴ My current book-project, tentatively entitled *Disinheriting the Globe*, takes up among other things the philosophical problem of generic definitions of tragedy and other ‘genres,’ such as comedy and romance, in Shakespeare’s plays.

the Duke, or to the “Venice” internal to the *mythos* of the drama, but moreover to us — we who stage or watch the play with certain affective responses.

The problem I have in mind is this: On the one hand, Shylock—in his very being as one of Venice’s minority Ghettoized Jews, in what he says and does (his religious practices, his usury, his way of dressing, his manner of speech), and finally in his desire to take “revenge” on Antonio —poses a set of problems that call for a civic or state framework that might address, or redress, them. That is to say, the problems and the threats he poses to the state of Venice, and to the life of at least one of its citizens, seem to demand some sort of ‘political’ solution; namely, a solution that has proto-legal or legal implications for the polity over and beyond Shylock (or Antonio) as an individual, idiosyncratic case.

On the other hand, what I want to call the dramatic force of the play—its capacity to move us through events that at least broach the fearful and pitiful—depends upon making us believe, however briefly or latently, that there is, at bottom, no solution to the problems Shylock poses, no civic framework that might make sense of it. By this I mean to say that Shakespeare’s drama—in particular (though not exclusively) the trial scene—depends for its dramatic force upon the ever-present possibility that what Shylock wants is nothing other than Antonio’s destruction, without reason, without motive and indeed without desiring any form of recompense beyond Antonio’s flesh.

This possibility is in fact what Shylock’s first words in the trial raise.

You’ll ask me why I rather chose to have
A weight of carrion flesh than to receive
Three thousand ducats: I’ll not answer that
But, say, it is my humor...
So can I give no reason, nor will I not
More than a lodged hate and a certain loathing
I bear Antonio. (4.1.40-44, 59-61)

So, we are led by Shakespeare to fear—and not without justification—that Shylock is simply making a mockery of the law or the state by asking it to sanction and facilitate something beyond its scope; namely, the satisfaction of his murderous hate. For, Shylock at this moment sounds frighteningly close to Iago who, at the close of *Othello*, refuses to answer the ‘why’ of his undoing to Othello and Desdemona—showing us that he was perhaps making no demand, fulfilling no motive, but rather simply realizing a motiveless hate.⁵

⁵ This characterization lies at the heart of A.C. Bradley’s compelling, Hegelian reading of Iago’s character. Bradley’s thought is that Iago’s fate is not external to him but “is himself;” that is, Iago so fully identifies with his success in convincing Othello to draw the conclusions he draws that he would not liberate himself from the destructive consequences that the outcome brings down upon him—namely, torture—even if he could. Iago is willing to die for his hatred, and thus makes clear that he seeks nothing

In this sense, it seems to me that the dramatic force of the play—to the extent that it moves us at all—turns upon making us fear, at the very least until Portia's command causes him to tarry a little, that Shylock's professed hate for Antonio will be realized in his slaughter of the merchant.⁶ That is, the trial scene asks us to suppose that the problem posed by Shylock has a legal solution, all the while fearing that it might not.

We are invited to “think”—along with the Duke and the “world,” as the Duke says—that Shylock will not follow through on the suit, that there must be some ‘solution,’ some hidden demand. “Shylock,” says the Duke at the outset—

the world thinks, and I think so too,
that thou but lead'st this fashion of thy malice
to the last hour of act and then 'tis thought
Thou'lt show thy mercy and remorse more strange. (4.1.16-20)

In describing what the world thinks, the Duke is doing more than betraying a hope that Shakespeare's own audience, too, may wish to have—namely, the hope that the trial will have a suitable ending. Moreover, it seems to me that the Duke is expressing a belief rooted in the collective *refusal* to believe in radical hatred; the refusal to believe that a tragedy rooted in unappeasable hatred can happen right before your eyes, in your city, on your doorstep. The Duke is therefore not only giving voice to a set of dramatic expectations—e.g. ‘wink, wink, you're not really going to go through with this Shylock, since we all know this isn't a tragedy’—but moreover the worldview from which this expectation arises; namely, the disbelief that malice comes from nowhere, is part of no economy of injury, makes no demand, and that it can happen *here*.

The Duke refuses, in short, to believe that Shylock is a unique case; whereas we might fear that this is precisely what he is. Indeed, by the same token, because we know that the economics do not add up—Antonio's flesh is worthless except for the fact that it deprives Antonio of his life—we are more than a little nervous, as are the Duke and the spectators assembled to hear the proceedings. After all, a part of us, if we are to be moved, fears that what Shylock wants is something incalculable here, that his hatred is unappeasable.

Although it may have started in a desire for payback or “revenge”—the word Shylock uses in his “hath not a jew eyes?” speech—Shylock offers none of that same ‘payback’ logic in the trial scene, and instead gives no reason beyond “a lodged hate and a certain loathing” that he bears Antonio. “The villainy you

from his hateful deeds apart from the destruction of Othello. *Shakespearean Tragedy* (New York: Penguin, 1991), 215-7.

⁶ In the most recent production of the play I have seen—by Theater for New Audiences in New York City, 2007—F. Murray Abraham's Shylock silently lunged for Antonio with the knife, held back only by attending guards. Of course, this move is not scripted by Shakespeare, but the effect on the audience was palpable, underscoring the fear that had arisen among the spectators.

teach me," he had promised Salario and Solanio in the earlier encounter, "I will execute and it shall go hard *but I shall better the instruction*" (3.1.65-6). This last phrase—"I shall better the instruction"—seems already to imply not 'eye for an eye' revenge, but something like a gratuitous excess in the economy of reciprocal injury that Shylock lists; as if the malice he bore Antonio were greater than the sum of the wrongs he has suffered at Christian hands. And so when Shylock, in the trial scene, speaks no longer of revenge but of "hate"—"hates any man the thing he would not kill?"—I wonder if a part of us does not hear what that question is really asking?

To the extent that I am right that the dramatic force of the scene only moves us if we are torn between these two poles, then this means that *we*, too, (and not just Portia) have to figure out *how* to judge the case of the 'bond.' For, we—like the Duke, maybe, or the gathered Venetians—regard the entire affair as a train-wreck-in-progress that, nevertheless, ought to be averted or avoided. The tension between the possibility of a 'legal/political' solution, which is part of play's 'narrative frame,' and the genuine fear that no such solution is forthcoming (or possible) is, I am arguing, indispensable for the story's dramatic tension. The dramatic question is not simply 'what' legal, political or human solution will be devised or arrived at — but rather, *is* there such a solution at all?

After all, if we already think from the start that the issue is fully resolvable, that Shylock is not unappeasable, then we are not going to be genuinely moved—for what would there be to fear? It would become simply a matter of anticipating, or working out, a set of possible solutions—following, roughly, the expectation expressed in the Duke's opening words. But what I am suggesting is that the Duke—and the watching "world" or the audience—is, down deep, truly worried, and that they are simply whistling past the graveyard when they say otherwise.⁷ After all, Shakespeare will not let us simply expect that Shylock and Antonio will—or, that they even want to—make it out alive. By the same token, if we think that Shylock just wants Antonio dead, and that everything else—the bond, the suit, Portia's judgment—is merely an instrument to that end, then I think we are in a different play; *Othello*, perhaps. So, through its dramatic force, the play puts us in a double-bind by asking us not to worry, while disquieting our simple faith in a non-tragic outcome.

What to make of this double-bind?

Let us look at the first aspect of the double-bind, namely 'our' belief that Shylock's hate is not the motiveless, 'Iago-variety' of hatred—not, that is, a hatred that makes no compensatory demand and cannot be satisfied in any other way than in the destruction of the hated one. (Again, this is the belief that the

⁷ In his book *Shylock as Shakespeare*, Kenneth Gross goes so far as to imagine Shakespeare addressing us, provoking us to take Shylock's hatred seriously. "It is hard to hear, this music of hatred," he imagines Shakespeare himself saying, "it is the noise of the world and the noise of clamoring hearts. What kind of hearts do you need to hear this music?" *Shylock as Shakespeare* (Chicago: University of Chicago Press, 2006), 84.

Duke says he and the whole “world” hold at the scene’s outset.) The world and we believe, that is, that Shylock’s hatred has a “reason.” Indeed Antonio himself believes this, and says as much in acknowledging that Shylock hates him: “He seeks my life; his reasons well I know; I oft delivered from his forfeitures/ Many that have at times made moan to me; Therefore he hates me” (3.4.21-24).

Antonio, perhaps characteristically, thinks that the issue is all about money; that Shylock hates him for this reason; his ‘hate,’ Antonio supposes, is nothing other than or more than a form of payback. Accordingly, he thinks that Shylock’s pursuance of the suit is part of an economy of injury, that it is the response of someone who has suffered a series of wrongs; that Shylock acts in the belief that his persecutors are ‘owed’ comeuppance; pitiless as it appears, his hate is rooted in a desire for revenge, and therefore has an inherent logic or reason. It is, of course, this belief in the ‘logic’ of Shylock’s suit that inspires Bassanio to offer six thousand ducats in place of the three thousand ducat debt; as if the larger sum of money will serve as counter-payment for, and acknowledgment of, injuries done to Shylock. And—over and beyond Antonio and Bassanio—we, of course, might understand Shylock to be the victim of ritual anti-Semitic practices; and, therefore, we might imagine that his hatred results from an historical economy of power and injury, and does not therefore exceed this economy.

Paradoxically, this belief in the economic logic of Shylock’s suit finds support from those readers of the play who see in Shylock the representative of an Old Testament understanding of ‘law’ as rooted in the unbreakably economic principle of ‘an eye for an eye.’ I say ‘paradoxically,’ because the sort of readings that find in Shylock an embodiment of the ‘eye-for-an-eye’ principle—diametrically opposed to Christian “mercy”—are often (though not always) the readings that reify in the simplest ways a Jew/Christian dichotomy: where the Jew embodies the ruthlessness of economic pursuit, payback and return—and the Christian embodies the value of ‘mercy’ as a fundamentally uneconomic ‘gift’ that “droppeth as the rain from heaven.”⁸

However here we see that the Christians, to rephrase Marx, are forced to become Jews in their dealings with Shylock, if they are to make their own beliefs livable. That is, as Antonio’s remarks show, they must believe *a priori* that Shylock’s demands are not uneconomic. With the possible exception of Bassanio, they seem generally unwilling or unable to confront Shylock’s hatred as anything other than a demand for retribution, the result of some prior injury. Certainly, Antonio cannot, or does not, fully confront Shylock’s hatred as a radical evil that might stand (in some unholy conflict) as the equal of Christian mercy, as something beyond recompense and exchange. Like the Duke, and the “world,” he must think of Shylock’s interests as fundamentally economical; they must believe his hatred to be nothing more than a desire for ‘revenge,’ payback for an injury suffered—not only in order to oppose to this ‘desire for payback’ the sheer gift of ‘mercy’ (as the trial scene, and the play as a whole, is often understood to be doing)—but in order to make of Shylock someone with whom they can deal at

⁸ C.f. Leslie Fielder, *Stranger in Shakespeare* (New York: Stein and Day, 1972), 86-7.

all, in a human or political fashion. In other words, in order to *avoid* taking seriously the possibility that Shylock is, as Bassanio says, a “cruel devil” whose malice is every bit as motiveless, reasonless and uneconomic as the mercy that “droppeth as the gentle rain from heaven” (4.1.181).

This could be put more plainly. What must be avoided is the possibility that mercy, too, has its equal—in the sheer incalculability of hate and loathing. What must be avoided is not the irreconcilability between the values of *law*/economy and mercy, but between *hate* and mercy.

Can an *anti*-merciful act, as rigorously unforgiving as it is dispassionate and premeditated, reveal itself to be as legitimate—indeed, as *divine*—a principle as the mercy invoked by Portia? Is the quality of hatred, too, not strained?

The stakes of this are nowhere clearer than in Antonio’s demand that Shylock “presently become Christian,” and in the context of this demand. In her compelling reading of this scene, Julia Reinhard Lupton suggests that Portia’s success in transforming the civil proceedings into a criminal one, in which Shylock stands accused of seeking the life of a citizen, pushes the boundary between citizen and non-citizen in “the domain of the scandal” by reducing Shylock to bare life. She suggests that civic life is itself on trial here, because what is being asked is whether “civic life” can “survive as a valid and authentic form of existence if it operates at the expense of the alien... stripped of property, dignity, criminalized and dispossessed and fundamentally alone?”⁹ On her account, in other words, the stakes regard the separation of bare life from political life, *zoe* from *bios*, and the extent to which the state can both produce and tolerate such a division. I, too, think this is a crucial question in the play—though I suspect that this “scandal” can probably be tolerated a lot longer than Lupton seems to suggest it can in her reading.

However, I would like to suggest that perhaps another scandal is at work here. Rather than the incompatibility of bare life and the law, or what Lupton calls the “constitutional regime of citizenship,” perhaps what we are facing (or, refusing to face) is an opposition or conflict between the principles of hate and mercy—principles that exceed and trouble the domain of the law, of politics, of economics, of state life itself.¹⁰

The belief that underwrites Lupton’s reading—that the rule of law can, through contortions and inventions, deal with the scandals that confronts it—is one that I *want* to share as well. In a sense, this desire also underwrites the Duke’s belief that Shylock’s complaint, his seemingly unreasonable pursuit, has a reason after all, and therefore a remedy. I *want* to believe, not unlike Antonio, that Shylock is acting in response to a prior injury—for, then, I might attempt to address the injury—by offering him citizenship, for instance, or by entering into some sort of

⁹ Julia Reinhard Lupton, *Citizen-Saints: Shakespeare and Political Theology* (Chicago: University of Chicago Press, 2003), 96-7.

¹⁰ Lupton, *Citizen-Saints*, 96

negotiation. I might fail; the law might fall short, but at least a human, political solution would present itself on the horizon. At the very least, I would want to believe—take for granted, even—that Shylock might be convinced that, no matter how deeply felt his antagonism, he might be contented in ways other than having his desire to cut into Antonio's flesh sanctioned by the state.

And yet, suspending momentarily the many differences between Shakespeare's Venice and the historical context in which this essay is being written, we cannot fail to recall the contemporary crisis in our own belief in citizenship—or other 'economic,' diplomatic, political modes of redress—as a means for dealing with far less immediate threats to civic order than the one Shylock poses to Venice.¹¹ (Consider, for example, that less than four hundred and sixty six Iraqis have been admitted to the United States since 2003.¹²)

What do we fear, if hatred is not somehow at issue? Is this fear—a collective, affective response to current events, or perceptions of events—fully separable from the way in which the discourse of citizenship and rights itself emerges?

We might consider, moreover, the way in which our elected leaders speak of the threat posed by fundamentalist Islamic terrorist acts to Western countries not in terms of responses to injuries they may have suffered at our hands—as Antonio speaks of Shylock—but rather in terms of their hatred (a priori, and without reason) of our freedom, our rights, our way of life and so forth.¹³ It is difficult, for me at least, to imagine Dick Cheney speaking in the manner of the Duke of Venice—declaring, for instance, that they and the world “think” that an alleged enemy, “touched with human gentleness and love” will show mercy and remorse. Unlike Shakespeare's Duke, of course, our elected officials do not actually seem interested in a solution that does not involve bloodshed. Still, if they are exploiting a fear of unappeasable hatred—albeit through a dramatic narrative far less sophisticated than Shakespeare's—then perhaps we might consider the extent to which the more refined plot-structure of *The Merchant of Venice* depends upon deliberately instilling in the audience the same fear: the possibility that Shylock simply, plainly, hates without reason:

I can give no reason, nor will I not
more than a lodged hate and a certain loathing
I bear Antonio. (4.1.59-61)

¹¹ I have in mind, for example, the inability of the U.S. Congress to adequately debate, let alone craft legislation, on the status of immigrants currently residing in the United States under less than transparent legal conditions.

¹² www.spokesmanreview.com/local/story.asp?ID=170609

¹³ I am indebted here and throughout to an essay on Shylock by Stephen Greenblatt, shown to me in draft form. That essay compelled me to think anew about hatred in the play, and specifically about how the play might be understood in relation to contemporary affective responses to Islamic fundamentalism. It has been published in German translation. See Stephen Greenblatt *Shakespeare: Freiheit, Schönheit und die Grenzen des Hasses* (Frankfurter: Adorno Vorlesung 2006), *Aus dem Amerikanischen von Klaus Binder*.

Now, if the relative success of our elected officials, and of Shakespeare's play, depends upon the very same dramatic technique, as it were—namely, maintaining, as long as possible, the belief that there is no 'reason' for hostile action beyond 'their hatred of us'—then we wonder why Shakespeare confronts his audience in this way? George W. Bush's motives are more transparently instrumental, and therefore fail to convincingly sustain the double-bond of an eventual legal solution and absolute hatred; but it is probably worth considering what response Shakespeare is eliciting, by working harder to dramatically sustain this double-bond.

At this point, I would like to return to what I said at the outset about tragedy, and its implications not only for the protagonists, but moreover for the community that stages their story and responds affectively to it. At the close of her chapter on *The Merchant of Venice*, Lupton repeats twice and with emphasis that there is "nothing tragic in his destiny," that "Shylock's life-story...is not simply a tragedy."¹⁴ It is, I take it, Shylock's declaration that he is "content" that offers the strongest support that tragedy has been avoided here. Lupton thus reads his fate as an affirmation of the "the rule of law itself," however "measured and limited." The very measured-ness of Shylock's response, like the measured rule of law to which it responds, are thus read here as indications that we are not in the domain of the tragic.

In an early essay in which Hegel's conception of Greek tragedy begins to take shape, if only in negative form through a series of reflections on Judaism and Christianity, Hegel remarks that

the great tragedy of the Jewish people is no Greek tragedy; it can rouse neither terror nor pity, for both of these arise only out of the fate which follows from the necessary slip of a beautiful being; it can arouse horror (*Abscheu*) alone.¹⁵

It seems to me worth considering at greater length *The Merchant of Venice* alongside Hegel's early essay, which his English translator entitles "The Spirit of Christianity and Its Fate," and in which Shakespeare is in fact cited more than once. For the moment, however, I shall limit myself to commenting on two aspects of Hegel's essay, in light of what I have been saying here.

First, Hegel studiously avoids attributing to the story of Shylock's spiritual father, Abraham, the full sense of the 'tragic' that he reserves for Greek tragedy. Jewish destiny—prefigured in the destiny of Abraham—is also tragic, for Hegel, but only insofar as this destiny is lived as the "structural impossibility of a union with the natural and political world, as well as with its own god."¹⁶ Abraham

¹⁴ Lupton, *Citizen-Saints*, 101.

¹⁵ G.W.F. Hegel, *Early Theological Writings*, trans. T.M. Knox (Philadelphia: University of Pennsylvania Press, 1975), 204-5.

¹⁶ Miguel de Beistegui, "Hegel: or, the Tragedy of Thinking" in *Philosophy and Tragedy*, eds. Miguel de Beistegui and Simon Sparks (New York: Routledge, 1998), 13.

separates himself from the community into which he is born, in a flight that according to Hegel signifies that “Abraham wanted *not* to love, wanted to be free by not loving.”¹⁷ He refused to attach himself to the world around him, to those around him, and thus puts himself in relation only to a God outside both the world and others. In the spirit of this separation, the Jewish people are thus, for Hegel, fated to inhabit a consciousness “incapable of reconciling itself with the powers which face them—nature, other people, God.”¹⁸ This, says Hegel, is moreover the horrible fate shared by none other than Shakespeare’s “Macbeth” —

who stepped out of nature itself, clung to alien Beings, and so in their service had to trample and slay everything holy in human nature, had at last to be forsaken by his gods and be dashed to pieces on his faith itself.¹⁹

The suggestion to be made here is obviously not that Shylock’s fate ought to be fully identified with, or read as, the fate of the Jewish people as Hegel figures it. Rather, what might be suggested regards how Hegel’s account of the ‘horrible’ tragedy of the Jewish people—parallel to that of Macbeth—identifies this horror with an attachment to an alien, loveless law, a set of abstract commandments which presuppose a denial or renunciation of deep, abiding human attachments. This apparent attachment to the law, at the expense of human attachments, is in fact what characterizes much of Shylock’s speech in the trial scene—where he finally stands alone, without a single friend, comrade or loved one in sight. Not bound to “please” others with his answers, as he says, he “stands for law,” “crave[s]” the law. “An oath, an oath!” he cries, “I have an oath in heaven/ Shall I lay perjury on my soul?/ No, not for Venice” (4.1.222-224).

Interestingly, of course, Shylock’s attachment to the law at the expense of other attachments does not abate even when he is compelled, under the threat of legal penalty, to convert or, as Lupton proposes, to “naturalize” by converting. On the contrary, on her reading, he clings all the more to the law, no matter the cost. Shylock’s consent, on Lupton’s account, thus signals not so much a new attachment to Christianity nor a rejection of Jewish tenants, practices or even the Jewish community. Rather, it signals precisely a *legal* procedure, and therefore a choice *of* and *for* the law that is rooted in its relative alienation from other, prior forms of human attachment (such as the Jewish community itself). Just as—craving the ‘law’ as an “oath in heaven”—Abraham finds his home in enslavement to God, that is, in a law that does not coincide with his life and world, so too Shylock’s consent to ‘conversion/naturalization’ would signal the avoidance of a full (say, Greek) tragic fate and instead be something “measured and limited, like the rule of law itself.”²⁰

¹⁷ Hegel, *Early Theological Writings*, 185.

¹⁸ Miguel de Beistegui, “Hegel: or, the Tragedy of Thinking,” 14.

¹⁹ Hegel, *Early Theological Writings*, 205.

²⁰ Lupton, *Citizen-Saints*, 101.

Lupton understands this, rightly I think, as a prescient pre-figuration of certain versions of the modern, liberal democratic state—wherein citizenship is a clinging attachment to the law and its procedural bestowing of rights and entitlements, in excess of other pre-existing human attachments. In a certain sense, therefore, Lupton's reading of Shylock as something other than fully tragic coincides with this aspect of Hegel's reading of the Jewish spirit. And it reveals this spirit to be kindred, in a certain sense, to that of the modern, liberal nation-state—as an organization of life that would likewise seek to foreclose fully tragic predicaments by means attachment to a law alien to older modes of human attachment.

There is perhaps a second cue to be taken here from Hegel's text, regarding the affective response provoked, on his account, by the tragedy of the Jewish people—namely, “horror.” Hegel thinks that Abraham (and this is, roughly, one reading he gives of Macbeth as well) inspires only horror, and does not move us to anything approaching fear and pity. One way to understand this—in a slightly more Aristotelian key, but perhaps not unfaithful to the spirit of Hegel's meaning—is that in Abraham and Macbeth we find nothing with which we, as a community, might meaningfully identify, precisely because these figures seem to renounce every attachment, clinging ever more to “alien beings.” And without this identification—without being able to see Abraham or Macbeth as “like ourselves”—*we* cannot be moved as a ‘we,’ dramatically affected by fear and pity in a way that would reconfigure our own communal bonds. We are simply left horrified; petrified, as it were, not stirred.

But if the account of Shylock's character that I have been trying to sketch throughout this essay is at all right, then I am tempted to say that horror does not adequately capture the affective response his words and deeds provoke. If Hegel wants to suggest that Abraham only horrifies us but does not stir us, then perhaps we can respond that Shakespeare's Shylock can and does move us more palpably, in ways for which we still need to account. Indeed, if my suggestions here have not been too far off the mark, then it seems plausible to suppose that Shylock moves us in ways that appear (or, at least, are very close to being) constitutive of the very emotions that Aristotle sees at work in tragedy.

This is not an assertion that I can justify or prove, of course, beyond my sense of my own affective response to Shylock and my sense of audience or student responses with which I am familiar. But it seems to me that Shylock's words, deeds and fate do not inspire ‘horror’ any more Shylock's story in *The Merchant of Venice* could be reduced to the story of Abraham as retold by Hegel.

Again, I cannot demonstrate this through textual exegesis alone. But, I would like to offer one justification for my sense that Shylock's fate does not inspire “horror alone.” Shylock's conversion (or, to take Lupton's suggestion, his ‘naturalization’) is, I would venture, not *only* an attachment to the “rule of law;” his conversion is not simply the cold, formal allegiance to an alien commandment at the expense of other attachments. For when he converts he does not, after all, submit to a measured ‘command’ or a ruling—as he had done

when he accepted Portia's ruling regarding the pound of flesh and the "jot of blood." Rather, in consenting to the conversion he obeys a particular set of conditions placed upon him by *others*—namely, Antonio and the Duke. Something of his consent, therefore, cannot be separated from a wrenching consent to the awful demands *not* of the 'law' as transcendent or impersonal commandment or judgment—but rather the demand of living with *these others* (even those he hates, and who have no regard for him). Shylock does not just accept *the* terms of the settlement, as he accepted Portia's earlier ruling on his suit; moreover, in converting, he accepts *their* terms.

In this way, unlike Hegel's Abraham, Shylock appears to accept the full weight of life under the demands of other human beings, even those who do not love him and whose demands compel the deepest sacrifices. Moreover, Shylock does not for a moment imagine that he will be able to completely leave this life with others behind without leaving behind life itself. Thus, in choosing to live on, he accepts and suffers the fearful and pitiful penalty that such a life—with others, in the city—exacts. This acceptance and suffering, which I am tempted to see as precisely terrible and pitiful, may provoke our bewilderment, our pity, our scorn or our approval—but it seems to me implausible to see in it only horror.

So, why the sense that tragedy is, or ought to be, avoided here?

A.C. Bradley—a Hegelian Shakespearean who was, I think, closer to Shakespeare's tragic sensibilities than to Hegel's in the final analysis—saw in Shylock a tragic character stuck, as it were, in the wrong play.²¹ (Harold Bloom repeats this part of Bradley's reading, finding the "I am content" too jarring for the context in which it appears). Bradley, of course, defined Shakespearean tragedy in part by the "passions" through which the protagonists are defined, which when realized result in their destruction—Othello destroyed by jealousy, Iago destroyed by hate etc.²² On his reading, Shylock's passions are simply incompatible with the play's ending—as if Shakespeare did not allow Shylock to follow through on his tragic destiny, to make good on the passions (of hate and revenge, I suppose) that appear to animate him. Or, better, as if Shylock himself were tragic—but the broader story of which he is a part is not. The incongruity, we might conclude over and beyond Bradley, produces the sense that Shylock's story is in fact not finished—that he has not performed his last deed.

Perhaps his defining deed awaits him, or follows after him, along with the 'deed' he is meant to sign—but defers—at the end of the trial scene.

²¹ Bradley writes: "One reason why the end of *The Merchant of Venice* fails to satisfy us is that Shylock is a tragic character, and that we cannot believe in his accepting his defeat and the conditions imposed on him. This was a case where Shakespeare's imagination ran away with him, so that he drew a figure with which the destined pleasant ending would not harmonize." *Shakespearean Tragedy*, 37.

²² Hegel anticipates these arguments in his *Lectures on Fine Art*.

For my part, I close by asking what we are avoiding when we avoid calling Shylock, or the play, tragic—and why this avoidance needs enunciation at all, if there is not some wishful thinking at work? Why, in other words, the need to say that *Merchant* is close to, but decidedly not, tragic in the full sense of the word? What is being claimed when we say tragedy is avoided, or averted?

For, there is nothing tragic in Shylock's destiny *only* if we think that the rule of law has really, finally resolved something here. Considered another way, we might say that there is nothing tragic only if we believe that Shylock's hatred for Antonio has limits, has reasons and a logic—limits and logic we can safely “measure” in the way Portia offers her measured ruling. I underscore the word *belief* here—for the avoidance of tragedy, like faith in the law, is rooted in nothing other than belief.

Moreover, there is nothing tragic in Shylock's fate only if we are not moved, not truly unnerved, by the hate Shylock has publicly professed—only if we presume, absolutely, that malice has procedural remedies. For, whether we are moved or not—as Aristotle sensed—must be the arbiter for the social bonds our judgments effect.

If we are not moved in the trial scene by something like pity, then Shylock's legal fate, his conversion, does not compel us to judge it, to weigh its consequences. But I think Lupton is right to claim that we ought to weigh its consequences; and I therefore think that pity is a constituent emotion of the scene. And yet, by the same token, if we are not moved by something like fear—fear that we will be forced to watch the flesh be extracted, watch Shylock die, watch the conflict end in bloodshed—then we are not taking seriously Shylock's claim to hate beyond reason, we are not believing it to be real.

There is nothing tragic *only* if we believe that Shylock—who has left “not well” and without, in fact, having yet signed the “deed;” without, strictly speaking, fully *doing* the deed that his stated contentment seemed to signal, according to the recognizably binding performative ritual that he is bidden to do—will not seek and perhaps find some other means of acting out his hate against Antonio. There is nothing tragic so long as we suppose that Shakespeare actually gives us the ‘end’ of Shylock's story, if suppose we know his ‘fate’—but, do we feel sure that do? Do we, today, after Baghdad, London, Madrid, Bali, 9/11 and so on, really think that the contentment of citizenship is an anecdote to hatred? The end of the story?

In sum, we have to ask: ‘how, and if, we are moved by this trial?’ And in asking this, face rather uncomfortable questions about ourselves: How much do we “believe” in the rule of law? To whom, or to what, do we cling? Do we know what it means to hate without reason?

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